

SENATE No. 622

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting public health and reducing health care costs.

PETITION OF:

NAME:

Jason M. Lewis

DISTRICT/ADDRESS:

Fifth Middlesex

SENATE No. 622

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 622) of Jason M. Lewis for legislation to protect public health and reduce health care costs. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 515 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting public health and reducing health care costs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws is hereby amended by inserting after
2 Section 23, the following Section:-

3 Section 23A. (a) The department, in order to protect public health and contain health care
4 costs in the Commonwealth, shall create an assessment tool to quantify the health impacts and
5 costs of emissions associated with grid electricity and delivered fuels, and the benefits of energy
6 conservation, energy efficiency and renewable energy in the Commonwealth.

7 (1) The assessment tool shall separately quantify health impacts and costs of emissions to
8 environmental justice populations, the MassHealth program, community hospitals, the state
9 budget and public health.

(2) In creating the assessment tool, the department shall draw upon relevant agency expertise and resources, including but not be limited to, the Center for Health Information and Analysis, the Executive Office of Health and Human Services and its MassHealth program, and the Division of Energy Resources.

(3) In the design and operation of its assessment tool the department shall build upon existing health impacts assessment tools and analyses, including but not be limited to the health and health cost impacts used in the US Environmental Protection Agency's Clean Power Plan, and Co-Benefits Risk Assessment, as well as Health Care Without Harm's Healthcare Energy Impact Calculator.

(4) The assessment tool created by the department shall incorporate and analyze factors that have an impact on health, including but not be limited to, health impacts and costs due to particulate matter < 2.5 microns, sulfur oxides, nitrogen oxides, carbon, carbon dioxide, and mercury emissions from energy sources.

(5) The assessment tool created by the department shall generate a breakdown of how the analyzed factors will impact specific measures of health status, including but not be limited to, health impacts costs and savings from premature death, cardiovascular events or injury, chronic bronchitis, asthma, respiratory symptoms, hospital admissions, restricted activity days, lost school and work days, and developmental/neurological problems, or, as applicable, their avoided impacts and cost savings resulting from energy conservation, energy efficiency and renewable energy in the Commonwealth.

(b) The department shall update the tool every 3 years, or as needed, to maintain its accuracy. Beginning not later than 24 months after the effective date of this act, any new or

revised policy, regulation, or program of the Commonwealth, or any ruling or adjudication by an agency of the Commonwealth that impacts polluting emissions, especially those for energy, buildings, transportation and waste, shall explicitly factor in the tool's output reflecting the action's health incidents, health costs or avoided impact's savings.

SECTION 2. Notwithstanding any general or special law to the contrary, not later than 12 months after the effective date of this act, the Department of Public Health shall submit the assessment tool, created pursuant to section 23A of chapter 111, and explanatory materials on its use to the Clerks of the Senate and the House, the Secretary of the Executive Office of Health and Human Services, and the Secretary of the Executive Office of Energy and Environmental Affairs.